Preview

Early Attempts at Establishing Exclusive Rights in the British Columbia Salmon Fishery

Frank Millerd

ABSTRACT. *Resource managers struggled to discharge their responsibilities as the British Columbia salmon fishery expanded. With limited management and regulatory capacity and facing increasing fishing effort, exclusive rights appeared to be viable management tools. Exclusive area fishing privileges and limitations on the numbers of fishermen and processing plants were used. But, despite the potential for efficient harvesting and other benefits, the exclusive rights did not last. Established to meet short-term needs, not for long-term benefits, the rights allocations were flawed and opposed by many. With little assurance of exclusivity, no secure long-term tenure, and little transferability, the rights were incomplete.* (JEL Q22)

I. INTRODUCTION

While many studies examine the progression of a fishery from open access to access limited by the creation of property rights, this paper looks at the opposite move, from various forms of rights-based access to open access. The subject is the British Columbia salmon fishery from the late nineteenth century to the 1930s, an era of rapid development of the industry. The industry moved

Resource managers had to contend, not only with a growing industry, but also with limited knowledge of the resource, minimal budgets for administration and regulation, increasing conflict with the United States over jointly accessible stocks, and uncertainty about jurisdictional responsibility for fishing.

The jurisdictional uncertainty of the time arose from provincial challenges to the federal government's assumption of complete authority over fisheries after confederation in 1867. Both governments wanted a major role, viewing the industry as a source of revenue, a basis of development, and a way to distribute favors. Court decisions in 1882 and 1898 permitted provinces to allocate proprietary rights in fisheries and gave them limited legislative powers, encouraging many provinces to aspire to a wider role.[1] British Columbia allowed the federal government to take the lead for a time, but in 1908 created its own licensing and regulatory system. Both governments then issued cannery and fishing licenses, not always agreeing on licensing policy and

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